Getting Past No
By: William L. Ury

In this book, the author presents five ideas he refers to as Breakthrough Negotiation, which can be utilized when dealing with uncooperative or difficult negotiators. The author's overarching premise is that your goal when dealing with difficult negotiators should be to convert them from adversaries to partners so that the negotiation becomes a joint-problem-solving effort instead of a competitive effort.
The author identifies five obstacles to cooperative negotiation that should be overcome (or broken through) for effective negotiation:

1 **Your Reaction**: Your emotional reaction to the thoughts, feelings, and actions expressed by the other side
2 **Their Emotion**: The emotional disposition of the other side, which can be driven by fear, anger, and zero-sum thinking
3 **Their Position**: The other side's expression of and insistence upon what they want to get from the negotiation (not why they want it)
4 **Their Dissatisfaction**: The other side's view of your options for agreement, which may cause them to lose face
5 **Their Power**: The other side perspective on the power they possess in the negotiation, which may affect their willingness to act cooperatively.

The five ideas of Breakthrough Negotiation, which allow the negotiator to overcome the aforementioned obstacles include:

Don't React: Go to the Balcony

Ury's first suggestion is to Go to the Balcony, a metaphor for viewing the negotiation from the more objective perspective of a third party observer opposed to your own subjective judgment of the situation. By going to the balcony, you distance your emotional reaction from your engagement in the negotiation and avoid the common reactions of "striking back, giving in, or breaking off." Ury's observation was that it takes two people to entangle a negotiation into an unproductive dialogue, but it only takes one person to disentangle the negotiation or avoid entanglement altogether. Effectively "going to the balcony" involves pausing the negotiation to take a break and reflect upon what is happening during the negotiation, as well as advising negotiators to take time to consider proposals and not to make agreements on the spot.

Don't Argue: Step to Their Side

Ury's second suggestion involves trying to understand the problem or opportunity being negotiated from the other side's perspective. When effectively executed, this method repositions the discourse between you and the other side so that you are speaking as partners attempting to jointly address an issue opposed to adversaries in conflict over settlement. To this end, Ury makes several suggestions:

- Listen to the other side's perspective, acknowledge and paraphrase what they say to demonstrate your understanding, and ask them to correct any of your misunderstandings. It is important to keep in mind that acknowledgement is not the same as agreement. Acknowledging someone's thoughts and/or feelings demonstrates that you understand what they have said, not that you agree with their perspective.
- When acknowledging differences of perspective, do it with an optimistic tone

of voices. This creates a positive environment for openly discussing differences.

Don't Reject: Reframe

Ury's third suggestion involves reframing the other side's tactics and communication from positional to interested-focused. Ury's keen insight in this area is the recognition that a single deal must be built upon two or more perspectives, and the best way to accomplish this is through reframing rather than rejecting the positions and ideas of the other side. Under reframing, he makes several recommendations for deal making with difficult parties:

- Ask the other side open-ended, problem-solving questions aimed at uncovering their interests below the surface of their positions. Questions like "Why?" "Why not?" "What if?" "What makes that fair?" probe for interests, test options, and attempt to discover their standards of fairness.
- Use silence as an ally. Most people, especially in tense situations, are uncomfortable with prolonged periods of silences. After asking a question that was not answered fully or clearly or after presenting an option, be quiet. The chances are, the other side will speak first and be more forthcoming with information.

Don't Push: Build Them a Golden Bridge

The fourth suggestion involves removing common obstacles to agreement. Ury identifies several key roadblocks that may need to be overcome in the negotiation. First, the other side may reject an offer because it was not their idea. Second, the other side may have interests that are still yet to be met. Third, the other side may believe that they will lose face by accepting a proposal. Finally, the other side may feel rushed to agreement. To address these problems Ury provide multiple points of guidance.

- Ury suggests the best way to deal with a negotiator reluctant to accept a proposal that is not their own is to involve them in the process of crafting a proposal they can accept. First, avoid telling the other side what the best solution is or why your proposal is the best way forward. Instead, invite them to share their ideas, provide criticism, and if helpful, provide them with multiple options to select from.
- If the primary obstacle is that the other side still has unmet interests, spend time trying to understand their perspective and reasoning of the issues, and ensure you have considered their basic human needs for recognition, identity, and security, which Ury points out are the most powerful interests.
- If it appears that the other side will lose face by accepting the agreement, it is unlikely that the agreement will be accepted. To address this obstacle, ensure the proposal is consistent with their principles and values, have a third party recommend your proposal instead of you, ensure the other side received credit for resolving the conflict, and think of ways in which they could present the agreement to their constituency.

Don't Escalate: Use Power to Educate

Ury's final suggestion is a logical continuation from "build them a golden bridge," and promotes educating the other side to see that agreement is in their best interest. This answers the question 'what happens if the other side refuses to cross the golden bridge?' According to Ury, he or she should be prepared to educate the other side about their best alternative to a negotiated agreement. He writes, "Instead of using power to bring your opponent to his knees, use it to bring him to his senses." Ury provides several ideas on how to best use power to educate:

- Use reality-testing questions to illuminate the consequences of non-agreement. Ask, "What do you think I will do?" "What will you do?"
- Warn the other side of the consequences without threatening them. A warning educates the other side as to the consequences of non-agreement in an objective and respectful way
- In the same spirit as providing a warning in an objective and respectful manner, and when it is appropriate to reveal, educate the other side to you BATNA
- Keep reminding the other side that you have an alternative, that the proposed settlement is an attractive solution to your joint problem, and let the other side know that you are seeking a mutually satisfactory agreement; you are not trying to "win".